



Notification Waiver Determination

AGS Financial Group - Hartley Financial Group

Acquisition	AGS Financial Group Pty Limited (AGS Financial) and AGS Accounting Pty Limited (AGS Accounting) (together, AGS Financial Group) applied for a notification waiver in respect of: • AGS Financial's proposed acquisition of the business and assets of Hartley Financial Pty Ltd (Hartley Financial) and Platinum Diamond Financial Services Pty Ltd (Platinum) • AGS Accounting's proposed acquisition of the business and assets of Tax and Wealth Pty Ltd (Tax & Wealth) as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	25 August 2026

Parties to the Acquisition	AGS Financial provides financial planning and mortgage broking services. AGS Accounting, a wholly owned subsidiary of AGS Financial, provides accounting and tax advisory services. AZ Next Generation Advisory Pty Limited (AZ NGA), which invests in small- to medium-sized financial advisory and accounting businesses, has a minority interest in AGS Financial via AZ NGA's subsidiary Associated Planners Financial Services Pty Ltd. AZ NGA is an Australian professional services advisory company established in 2014 that owns financial planning and accounting businesses with operations and customers across Australia. AZ NGA is a subsidiary of AZ Aust Holdings Pty Ltd, whose major shareholders are funds managed by Oaktree Capital Management LP, a global investment management firm specialising in alternative investments, and Azimut Holding S.p.a., a global asset and wealth management business listed on the Milan Stock Exchange. The targets, Hartley Financial, Tax & Wealth, and Platinum (together, the Hartley Financial Group) have offices in Picton (NSW), Sutherland (NSW) and Parkdale (Melbourne). Hartley Financial and Platinum both provide financial planning and mortgage broking services. Tax & Wealth provides accounting and tax advisory services. AGS Financial Group, AZ NGA and the Hartley Financial Group all supply financial planning services, mortgage broking services, and accounting and tax advisory services.
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Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the parties' combined share in the supply of financial planning services, mortgage broking services, and accounting and tax advisory services in Sydney, Melbourne, NSW, Victoria and across Australia is estimated to be low and the increase in share of supply arising from the Acquisition would be small b. there are alternative suppliers of financial planning services, mortgage broking services, and accounting and tax advisory services in Sydney, Melbourne, and on a state and national basis. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act